

ESCROW AGREEMENT

THIS ESCROW AGREEMENT (the "**Agreement**") is made this 31 day of August, 2018 by and between Quesada Valdes PLLC., whose principal place of business is at 1313 Ponce De Leon Boulevard, Suite 200, Coral Gables, Florida 33134, referred to as "**Escrow Agent**", and Sunset Miami Investments, Inc., a Florida corporation, referred to as "**Landlord**" and Alta Sunset, LLC, a Florida limited liability company, referred to as "**Tenant**".

WITNESSETH:

WHEREAS, Landlord and Tenant have executed a Ground Lease with the Effective Date of September 1st, 2018 (the "**Ground Lease**") for the premises more fully described in the Ground Lease and located at 6075 Sunset Drive, South Miami, Florida. Capitalized terms used herein but not defined shall have the meanings ascribed to them in the Ground Lease.; and

WHEREAS, Section 4.1 of the Ground Lease provides for certain deposits to be delivered to the Escrow Agent to provide security to the Landlord for the operation and demolition of the Existing Improvements and for the construction of the Project as described in the Ground Lease. Prior to the Effective Date of the Ground Lease, Tenant provided Escrow Agent with the Initial Deposit of \$250,000.00. Within three (3) Business Days following the Effective Date of the Ground Lease, Tenant shall deposit the Second Deposit in the amount of \$500,000.00 with the Escrow Agent. Within three (3) Business Days following the issuance of the Building Permit by the City of South Miami, Florida unless the Ground Lease has been terminated, Tenant shall deposit the Third Deposit in the amount of \$1,250,000.00 with the Escrow Agent. The Initial Deposit, Second Deposit and Third Deposit are collectively referred to herein as the "**Deposits**"; and

WHEREAS, pursuant to Section 3.2(c)(iv)(2) of the Ground Lease, prior to the demolition of the Existing Improvements, Tenant shall also deposit with Escrow Agent an additional \$1,000,000.00 security deposit (the "**Construction Deposit**" and together with the Deposits, the "**Escrow Funds**"); and

WHEREAS, the parties have agreed to allow the Escrow Agent to hold the Escrow Funds which will vary from time to time during the demolition and construction period up to the amount of \$3,000,000.00; and

WHEREAS, the Escrow Agent has consented to hold all Escrow Funds it receives pursuant to the terms and provisions of the Ground Lease and this Agreement.

NOW, THEREFORE, the Escrow Agent, Landlord and Tenant agree as follows:

1. From time to time, Tenant shall deliver to Escrow Agent the required Escrow Funds as specified in the Ground Lease. Upon the execution of this Agreement the

Escrow Agent acknowledges having received the Initial Deposit in the amount of \$250,000.00.

2. The Escrow Agent shall only release any Deposits in strict compliance with the terms of this Agreement and the Ground Lease.

3. Following written notice from either Landlord or Tenant, or both, setting forth the identity of the party to whom such Escrow Funds (or portions thereof) are to be disbursed and further setting forth the specific section or paragraph of the Ground Lease pursuant to which the disbursement of such Escrow Funds (or portions thereof) is being requested, Escrow Agent shall disburse such Escrow Funds pursuant to such notice; provided, however, that if such notice is given by either Landlord or Tenant but not both, Escrow Agent shall (i) promptly notify the other party (either Landlord or Tenant, as the case may be) that Escrow Agent has received a request for disbursement, and (ii) withhold disbursement of such Escrow Funds for a period of ten (10) days after receipt of such notice of disbursement and if Escrow Agent receives within said ten (10) day period either (A) a written notice from the party that submitted the request for disbursement which notice countermands the earlier notice of disbursement, or (B) a written notice from the other party that conflicts with the request for disbursement given by the party submitting such request, then Escrow Agent shall withhold such disbursement until both Landlord and Tenant can agree upon a disbursement of such Escrow Funds. Landlord and Tenant hereby agree to send to the other, pursuant to Paragraph 13 below, a duplicate copy of any written notice sent to Escrow Agent requesting any such disbursement or countermanding a request for disbursement.

4. Notwithstanding anything to the contrary herein, Escrow Agent hereby agrees to disburse the Construction Deposit promptly following receipt of written notice from Tenant, and verification by Escrow Agent with Tenant's construction lender, that the condition set forth in Section 3.2(c)(iv)(2) of the Ground Lease has been satisfied.

5. The Escrow Agent shall deposit the Escrow Funds in an interest-bearing account at a financial institution chosen by the Tenant. The Escrow Funds shall be deposited in a money market account, savings accounts or time deposit as chosen by Tenant. Simultaneously with the execution of this Agreement, Tenant shall deliver to Escrow Agent a completed and signed form W-9. However, the Escrow Funds shall be available to withdraw at all reasonable times by the Escrow Agent in accordance with the Ground Lease and this Agreement.

6. All interest earned on the Escrow Funds shall belong to the Tenant, unless there is a default under the terms of the Ground Lease, then the interest shall belong to the Landlord.

7. The Tenant and Landlord shall cooperate with the Escrow Agent to execute any and all documents or tax forms required by the financial institution, so that all reportable interest income goes for the benefit of the Tenant, which shall be responsible for the payment of any taxes arising from said income. The Escrow Agent shall have no liability of any type for tax returns or income earned by the Escrow Funds.

8. Escrow Agent may act in reliance upon any writing or instrument or signature which it, in good faith, believes to be genuine, may assume the validity and accuracy of any statements or assertions contained in such writing or instrument, and may assume

that any person purporting to give any writing, notice, advice or instruction in connection with the provisions hereof has been duly authorized to do so. Escrow Agent shall not be liable in any manner for the sufficiency or correctness as to form, manner of execution, or validity of any written instrument delivered to it the sufficiency of the title to the property to be conveyed nor as to the identity, authority, or rights of any person executing the same. The duties of Escrow Agent shall be limited to the safekeeping of the deposits in the financial institution chosen by the Tenant to deposit the Escrow Funds, (without any liability to the Escrow Agent for the financial strength of such financial institution), and the disbursements of same in accordance with the written instruction described above. Escrow Agent undertakes to perform only such duties as are expressly set forth herein, and no implied duties or obligations shall be read into this Agreement against Escrow Agent. Upon disbursement all of or part of the Escrow Funds by Escrow Agent in accordance with the provisions hereof, the Escrow Agent shall thereafter be released of all liability hereunder in connection with the Escrow Funds (or such portion thereof).

9. Escrow Agent may consult with counsel of its own choice and shall have full and complete authorization and protection for any action taken or suffered by it hereunder in good faith and in accordance with the opinion of such counsel. Escrow agent shall otherwise not be liable for any mistakes of fact or error of judgment, or for any acts or omissions of any kind unless caused by its willful misconduct, gross negligence, fraud or breach of trust, and the parties agrees to indemnify and hold Escrow Agent harmless from any claims, demands, causes of action, liability, damages, judgments, including the cost of defending any action against it, together with any reasonable attorney's fees incurred herewith, in connection with Escrow Agent's undertaking pursuant to the terms and conditions of this Agreement, unless such act or omission is a result of the willful misconduct, gross negligence, fraud or breach of trust of Escrow Agent.

10. In the event of any disagreement between Landlord and Tenant about the interpretation of this Escrow Agreement, or about the rights and obligations of the Escrow Agent, or the propriety of any action contemplated by Escrow Agent hereunder, Escrow Agent may, at its sole discretion, file an action in interpleader to resolve said disagreement. Escrow Agent shall be indemnified by the non-prevailing party for all its costs, including reasonable attorney fees, incurred in connection with said interpleader action.

11. Escrow Agent may resign at any time upon the giving of thirty (30) days written notice to the parties. Within said thirty (30) day period, the parties shall have the right to appoint a successor escrow agent. Thereupon, all Escrow Funds may be transferred from the Escrow Agent to the successor escrow agent, providing that the successor escrow agent shall be either a bank or trust company having trust powers, an attorney who is a member of The Florida Bar, or a title insurance company authorized to do business in the State of Florida. If a successor escrow agent is not appointed by the parties within thirty (30) days after notice of resignation, Escrow Agent may petition any court of competent jurisdiction to name a successor escrow agent and upon the transfer of and due accounting for the Escrow Funds made to the successor escrow agent, either designated by the parties or designated by the Court. Upon resignation, Escrow Agent herein shall be fully relieved of all liability and responsibility under this Agreement to any and all parties.

12. In the event Escrow Agent is joined as party to a lawsuit by virtue of the fact that it is holding the Escrow Funds, Escrow Agent shall, at its option, either tender the Escrow Funds to the registry of the court or disburse same in accordance with the court's ultimate disposition of the cause, and Escrow Agent shall be entitled to its reasonable attorney fees and court costs incurred in accordance with this Agreement.

13. Any and all information, notices or demands herein required or provided for shall be delivered personally by hand delivery service, by overnight courier service (such as Federal Express or UPS) or certified mail, return receipt requested (postage prepaid) to the following addresses or electronic mail (so long as simultaneously sent pursuant to another approved method):

If to Landlord: Sunset-Miami Investments, Inc.
1313 Ponce de Leon Boulevard, Suite 200
Coral Gables, Florida 33134
Attention: G. Frank Quesada, Esq.
Email: gfg@qvlaw.net

With a copy to: Teresa Sordo
P.O BOX 1044
Mayaguez, P.R. 00681
E-mail: tsordo1@hotmail.com

If to Tenant: Alta Sunset, LLC
c/o ALTA Developers
2950 SW 27th Avenue, Suite 220
Miami, Florida 33133
Attention: Henry Pino
Email: hpino@altadevelopers.com

with a copy to: Law Offices of Patricia O. Espinosa, P.A.
2950 SW 27th Avenue, Suite 210
Miami, Florida 33133
Attention: Patricia O. Espinosa, Esq.
Email: patty@pespinosalaw.com

with a copy to: Greenberg Traurig, P.A.
333 SE 2nd Avenue
Miami, Florida 33131
Attention: Kimberly S. LeCompte, Esq.
Email: lecomptek@gtlaw.com

If to Escrow Agent: Quesada Valdes PLLC
1313 Ponce de Leon Boulevard, Suite 200
Coral Gables, Florida 33134
Attention: G. Frank Quesada, Esq.
Email: gfg@qvlaw.net

Either party may at any time hereafter by giving written notice to the other party as above provided, change its address for notices or demands or the name of the person to

whom notices or demands may be sent. All notices shall be deemed given when the initial attempted delivery is refused (or unavailable due to an unnoticed change of address) or when received, and the usual receipt (which need not be signed by the individual addressees) shall be evidence of delivery.

14. This Agreement shall be construed and enforced according to the laws of the State of Florida and may be executed in several counterparts, each of which shall be deemed an original, and all such counterparts together shall constitute one and the same instrument. To facilitate the execution and delivery of this Agreement, the parties may execute and exchange counterparts of the signature pages by electronic mail, and the signature page of either party to any counterpart may be appended to any other counterpart.

15. This Agreement represents the entire agreement between the parties with respect to the subject matter hereof, and shall be binding upon the parties hereto, and their respective successors and assigns.

16. Landlord and Tenant agree that the status of Landlord's attorney as Escrow Agent under this Agreement does not disqualify such law firm from representing the Landlord in any dispute that may arise between Landlord and Tenant concerning this transaction, including any dispute or controversy with respect to the Escrow Funds.

[Signatures to follow]

IN WITNESS WHEREOF, the parties have executed this Agreement on the day and year first written above.

Quesada Valdes, PLLC (**Escrow Agent**)

By: 
G. Frank Quesada, Esquire

Sunset Miami Investment, Inc.,
a Florida corporation (**Landlord**)

By: 
Teresa Sordo, President

Alta Sunset, LLC, a Florida limited
liability company (**Tenant**)

By: 
RAMON OTERO
MANAGER


HENRY PINO
MANAGER